

26PDUD02202 26PDUD02202

County: los-angeles

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Case Number: 26PDUD02202 Hearing Date: September 18, 2026 Dept: B

Hon. Victor

Avila, Dept B

Motion to Quash Service of Summons

Hearing Date: 9/18/26

CASE NO.: 26PDUD02202

CASE NAME: Scott Tracy Taft, trustee of the

Tracy Taft Separate Property Trust, Dated 8/31/23 v. Stephanie Brown, et al.

Moving Party: Defendants Stephanie Brown And

Sauskiana Brown

Responding Party: Plaintiff Scott Tracy Taft,

trustee of the

Tracy Taft Separate Property Trust

Notice: Sufficient

Ruling: DENY.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT

SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is an unlawful detainer case. On July 21, 2026, plaintiff Scott Tracy Taft, trustee of the Tracy Taft Separate Property Trust, Dated 8/31/23 (Plaintiff) filed a Complaint against defendants Stephanie Brown and Sauskiana Brown (collectively, Defendants).

On August 7, 2026, the Court approved Plaintiff's application to serve summons by posting.

On August 17, 2026, the Court denied Defendants previous motion to quash service of summons.

On September 1, 2026, Defendants, in pro per filed the instant motion to quash service of summons. On September 4, 2026, Plaintiff filed an opposition. On September 10, 2026, Defendants filed a reply.

On September 9, 2026, the hearing was continued to September 18, 2026.

LEGAL STANDARD

"Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant." (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202.) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential." (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) A defendant's knowledge of the action does not dispense with the statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow,” may move “to quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20(a)(3).)

“When a defendant challenges the court’s personal jurisdiction on the ground of improper service of process, ‘the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.’” (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) Filing of a proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service. (Am. Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

DISCUSSION

Defendants argue

that service was not attempted at the identified address despite Plaintiff’s process server’s claims. (Mot., p. 3.) Defendants argue there is no such record of the attempts on their surveillance cameras, which are operable, and argue that the process server committed perjury in claiming those 4 attempts, (Mot., p. 3; Brown Decl., ¶¶ 21-25.) Defendants argue the subsequent post and mail order was obtained by fraud due to Plaintiff lying about effectuating due diligence. (Mot., p. 3; Brown Decl., ¶ 26.) Defendant also indicates they have appealed the Court’s decision on a previous motion to quash. (Mot., p. 4.)

In opposition,

Plaintiff argues that an application for an order to post the summons and complaint was approved by the Court on August 7, 2026. (Opp., p. 3.) Plaintiff argues in light of that order, Defendants were served on August 12, 2026. (Ibid.) Plaintiff argues that Defendants filed the previous motion to quash on August 11, 2026, making that motion premature. (Ibid.) Plaintiff presents the declaration of the process server along with photographic evidence of posting. (Opp., pp. 4-5.) Further, Plaintiff argues that Defendants have refused to accept delivery of certified mail and the documents remain undelivered. (Ibid.) Plaintiff notes that Defendants did not disclose service being completed prior to the previous motion to quash hearing. (Opp., p. 5.)

In reply,

Defendants argue that the instant motion to quash is not aimed at the effectuation of service through posting, but rather the order to post itself arguing that it was obtained via perjury. (Reply, p. 2.) Defendants reiterate that Plaintiff obtained the post and mail order by providing the Court with a declaration of diligence is not truthful and Plaintiff did not actually attempt service four times in July of 2026. (Ibid.)

Here, Defendants

do not challenge sufficiency of service via post and mail which was authorized by the Court on August 7, 2026. (Reply, p. 2; See Application and Order to Serve Summons by Posting filed 8/7/26.) Defendants concede that the motion is not based on a failure to effectuate that service of process. (Ibid.) In light of the approved order to serve summons by posting, Plaintiff effectuated proper service of process by posting the summons and complaint at the Premises on August 12, 2026. (Rios Decl., ¶ 4; Exh. 1.) Plaintiffs also subsequently mailed the summons and complaint in compliance with that order. (Rios Decl., ¶ 5; Exh. 2.)

Accordingly, the
motion to quash service is DENIED.

CONCLUSION
AND ORDER

Defendants Stephanie Brown And Sauskiana
Brown's Motion to Quash Service of Summons is DENIED.

MOVING PARTY is to give notice.